

24VECV06301 24VECV06301

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-24

Motion: MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION

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Case Number: 24VECV06301 Hearing Date: September 24, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

DELISSA

CHASE, an individual,

Plaintiff,

vs.

KELLI RUST d/b/a ELITE PET CARE, et al.

Defendants.

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CASE

NO: 24VECV06301

[TENTATIVE]

ORDER RE: MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE, SUMMARY
ADJUDICATION

Dept.

I

HEARING

DATE: September 24, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: December 17, 2024

TRIAL

DATE: October 26, 2026

I.

BACKGROUND

This is a personal injury action arising out of Plaintiff Delissa Chase ("Plaintiff") being bitten by a dog under the care of Defendants Kelli Rust d/b/a Elite Pet Care ("Rust"), Katie Rose Cullen, erroneously sued as Katie Rose ("Cullen"), and DOES 1 to 20 (collectively, "Defendants"). On December 17, 2024, Plaintiff filed a Complaint against Defendants, alleging causes of action for: (1) General Negligence and (2) Premises Liability.

On March 28, 2025, Cullen filed a Demurrer with Motion to Strike the Complaint. The matter was fully briefed and came for hearing on April 25, 2025; the demurrer was sustained with 20 days leave to amend as to the second cause of action and the motion was granted with 20 days leave to amend.

On May 8, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants.

On June 20, 2025, Cullen filed a Motion to Strike the Complaint. The matter was fully briefed and came for hearing on July 24, 2025; the motion was granted striking the request for punitive damages without leave to amend.

On August 7, 2025, Cullen filed an Answer to the FAC.

On January 27, 2026, Plaintiff filed a Motion for Summary Judgment or in the Alternative, Summary Adjudication. The matter was opposed and came for hearing on June 23, 2026; the motion was denied as moot.

On June 30, 2026, Rust filed the instant Motion for Summary Judgment or in the Alternative, Summary Adjudication. On September 4, 2026, Plaintiff filed an Opposition. Any reply would have been due on September 14, 2026 per Code of Civil Procedure Section 437c, subdivision (b)(4). To date, no reply has been filed.

II.

LEGAL

STANDARD

A

party seeking summary judgment has the burden of producing evidentiary facts sufficient to entitle him/her to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c); *Vesely v. Sager* (1971) 5 Cal.3d 153.) The moving party must make an affirmative showing that he/she is entitled to judgment irrespective of whether or not the opposing party files an opposition. (*Villa v. McFerren* (1995) 35 Cal.App.4th 733.) When a Defendant or Cross-Defendant seeks summary judgment, he/she must show either (1) that one or more elements of the cause of action cannot be established; or (2) that there is a complete defense to that cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).)

"[T]here is no obligation on the opposing party . . . to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element . . . necessary to sustain a judgment in his favor." (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468 (quoting *Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830-31 (internal quotation marks omitted)) (alteration in original).) The trial court cannot properly grant summary judgment if the moving party fails to meet their burden. (*Id.*) A summary judgment granted under those circumstances would have to be reversed even if the opposing party failed to introduce evidence establishing a triable issue of fact. (*Id.*)

III.

DISCUSSION

Timeliness

Code of

Civil Procedure Section 437c, subdivision (a)(2) provides that "[n]otice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing." (Code Civ. Proc., § 437c, subd. (a)(2); see *Cuff v. Grossmont Union High School Dist.* (2013) 221 Cal.App.4th 582, 596.) If the notice is served by mail to an address within the State of California, the 81-day period is increased by 5 days. (See Code Civ. Proc., § 437c, subd. (a)(2).)

“The

motion shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise. The filing of the motion shall not extend the time within which a party must otherwise file a responsive pleading.” (Code Civ. Proc., § 437c, subd. (a)(3).)

Here,

the present motion for summary judgment or in the alternative, summary adjudication (“MSJ”) was noticed for September 24, 2026, thus Rust had until July 6, 2026 to file the MSJ because it would at least eighty-one (81) calendar days before September 24, 2026. The MSJ was filed on June 30, 2026. Furthermore, a MSJ must be heard at least thirty (30) calendar days before trial, which in this case is set for October 26, 2026. As such, the MSJ had to be noticed for hearing no later than September 28, 2026. Accordingly, the MSJ was timely filed.

Evidentiary
Objections

Plaintiff

object to portions of the declaration of Kelli Rust and select separate statement of material facts in support of Rust’s MSJ on the grounds of hearsay, relevance, argument, speculation, lack of foundation, and lack of personal knowledge. (See Plf. Evidentiary Objections, 9/4/26.) Objections based on lack of foundation, hearsay, and lack of personal knowledge should be overruled unless there is a reason to believe that a witness, including an expert witness, would not be able to lay a foundation and authenticate these facts at trial. (See Sweetwater Union High School Dist. v. Gilbane Building Co. (2019) 6 Cal.5th 931, 947-948.) As such, objection nos. 1, 3, 5 and 6 are OVERRULED. Objection Nos. 2, and 4 are OVERRULED on the grounds that Rust may testify to her lay opinion and/or state of mind. (See Evid. Code §§ 702, 1250.) Lastly, objection no. 7 is OVERRULED because there is other evidence cited in Defendant’s Separate Statement at No. 25 in addition to the alleged paragraph 31 of Rust’s declaration.

Summary
Judgment

Rust moves

for summary judgment or in the alternative, summary adjudication on the first

cause of action for General Negligence and second cause of action for Premises Liability on the grounds that: (1) Rust owed no duty to Plaintiff and cannot be held liable for failure to warn Plaintiff because Rust had no actual or constructive knowledge that the dog presented a danger nor that the bite was foreseeable [issue nos. 1-2]; (2) Rust is not strictly liable under Civil Code Section 3342 because she does not own the dog [issue no. 3]; (3) Rust is not liable under Civil Code Section 846 because she is not the owner of the Premises and Plaintiff was not there for recreational purposes [issue no. 4]; and (4) Plaintiff has no admissible evidence that Rust acted with malice, oppression, or fraud [issue no. 5]. (Not. Mot. at 2:1-3:3; Mot. at pp. 11-18.)

Scope of Pleadings

The

function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-382.) Since the pleadings delimit the issues, summary judgment cannot be granted or denied on grounds not raised by the pleadings. (*Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1663.)

The FAC

alleges, inter alia, that Rust operates a dog daycare under the business name, Elite Pet Care ("EPC") on the real property located at 6944 Geyser Ave, Reseda, CA 91335 (the "Premises"). (FAC, ¶¶GN-1; ¶¶Prem.L-1-L-3.) Plaintiff lived at the Premises. (Id.) On July 23, 2024, Rust was providing a dog daycare service to Cullen for her Dalmatian dog (the "Dog"). (Id.) Rust or her agents allowed the Dog to access the common area. (Id.) Plaintiff arrived home to disarm the alarm system and turned around to see the Dog right next to her. (Id.) Plaintiff went to pet the Dog on the head and the Dog bit her hand (the "Incident"). (Id.) Prior to the Incident, Cullen told Rust either in writing via text message and/or verbally not to introduce the Dog to other people because of the Dog's prior bite to another person's hand. (Id.) Plaintiff was not informed that the Dog had bitten someone else's hand before. (Id.) Rust also failed to implement safety protocols despite actual knowledge of the serious risk of harm. (Id.) Cullen knew or should have known EPC operated within a shared residential

property where Plaintiff resides and would potentially come into contact with residents including Plaintiff and failed to directly warn Plaintiff or any other residents of the Dog's dangerous propensities. (Id.) Defendants are strictly liable. (Id.)

Negligence and Premises Liability

"To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries." (Lueras v. BAC Home Loans Servicing, LP (2013) 221 Cal.App.4th 49, 62.) "[W]hether an individual owes a duty of care to another is a question of law." (Portillo v. Aiassa (1994) 27 Cal.App.4th 1128, 1133.)

"The elements of a cause of action for premises liability are the same as those for negligence." (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207.) "Accordingly, the plaintiff must prove, 'a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.' " (Id.)

"Under California law, a landlord who does not have actual knowledge of a tenant's dog's vicious nature cannot be held liable when the dog attacks a third person. In other words, where a third person is bitten or attacked by a tenant's dog, the landlord's duty of reasonable care to the injured third person depends on whether the dog's vicious behavior was reasonably foreseeable." (Donchin v. Guerrero (1995) 34 Cal.App.4th 1832, 1838.) "Without knowledge of a dog's propensities a landlord will not be able to foresee the animal poses a danger and thus will not have a duty to take measures to prevent the attack." (Id.) Whether the landlord had actual knowledge "can be satisfied by circumstantial evidence the landlord must have known about the dog's dangerousness as well as direct evidence he actually knew." (Id.) (See also Drake v. Dean (1993) 15 Cal.App.4th 915, 925 ["In determining the keeper's liability for negligence for injuries inflicted by a domestic animal, the criterion usually adopted is one of reasonable anticipation of the occurrence, i.e., foreseeability."].)

1.

Defendant's Initial Burden

Here, Rust presents evidence showing, inter alia, that she has owned and operated a licensed dog daycare and boarding facility for over fourteen (14) years under the business name EPC. (Def. Sep. Statement of Facts (“DSSF”) no. 1.) This is undisputed. (Plf. Sep. Statement of Facts (“PSSF”) no. 1; Plf. Addtl. Material Facts (“PAMF”) no. 18.) Cullen owns a neutered male Dalmatian named Token, i.e., the Dog, and is a client of EPC. (DSSF no. 2.) Cullen completed an Intake Form and signed a Boarding Agreement with Rust on or about April 10, 2024, wherein Cullen wrote that the Dog had never attacked anyone and that the Dog was “shy” and preferred people he knew. (DSSF nos. 3, 35.) Prior to the Incident, Plaintiff interacted with the Dog on four or five occasions. (DSSF no. 24.) These interactions were normal including petting the Dog whenever he would walk up to Plaintiff. (DSSF no. 25.) Cullen stated in an text message exchange with Rust after the Incident that she only saw the Dog bite a guy who was rough housing with the Dog, who does not like to be manhandled. (DSSF no. 36.)

In light of the evidence presented by Rust, a reasonable jury could find that Rust had no prior knowledge of any vicious or dangerous propensities of the Dog to give rise to a duty of care and to warn Plaintiff. Therefore, Rust has met her initial burden that no triable issue of material fact exists as to whether Rust is negligent under general negligence and premises liability theories. The burden now shifts to Plaintiff to raise a triable issue of material fact.

2.

Plaintiffs’ Burden

Plaintiff submits evidence showing, inter alia, that Rust was responsible for the care, custody and control of the dogs at EPC including the Dog involved in the Incident. (PAMF nos. 2-4.) Rust was also responsible for implementing and enforcing safety protocols at EPC. (PAMF no. 5.) Prior to the Incident, Cullen verbally warned EPC not to introduce the Dog to other people without a proper introduction and stated it would be best if she was present when the Dog was introduced to new people. (PAMF nos. 6, 21-22.) Cullen testified that to her understanding, Plaintiff had never met the Dog before the Incident. (PAMF no. 24.) Furthermore, one occasion prior to the Incident, Rust had informed Cullen via text message that the Dog had been acting up including posturing, stiffness in the body, and not wagging the tail, thus had to be separated from another dog at EPC. (PAMF no. 30.) Moreover, Rust

did not warn Plaintiff about the Dog. (PAMF nos. 7, 11, 28.) Additionally, the Dog's records include reference to severe fear/mild aggression and territorial/protective aggression. (PAMF no. 20.) Rust did not review the Dog's medical records outside of vaccinations and if the dog is spade or neutered before boarding and had no written policy for investigating bite history or keeping dogs with a bite history out of shared residential areas. (PAMF nos. 31-32.)

Reviewing the evidence submitted by Plaintiff, a reasonable jury could find that prior to the Incident Rust had at least constructive knowledge that the Dog had dangerous propensities that give rise to a duty of care and to warn Plaintiff. Thus, the Court finds that Plaintiff has presented substantial evidence showing a triable issue of material fact exists as to whether Rust is negligent under general negligence and premises liability theories.

Strict Liability

Civil Code Section 3342, subdivision (a)

provides in pertinent part: "The owner of any dog is liable for the damages suffered by any person who is bitten by the dog while in a public place or lawfully in a private place, including the property of the owner of the dog, regardless of the former viciousness of the dog or the owner's knowledge of such viciousness. A person is lawfully upon the private property of such owner within the meaning of this section when he is on such property in the performance of any duty imposed upon him by the laws of this state or by the laws or postal regulations of the United States, or when he is on such property upon the invitation, express or implied, of the owner." (Civ. Code, § 3342, subd. (a); see also *Laverone v. Mangianti* (1871) 41 Cal. 138, 140 ["[T]he owner, knowing the vicious propensities and ferocious nature of the animal, keeps it at his own risk, and he should bear the responsibility for any injury inflicted by it upon a person who is free from fault."].)

However, " '[a] statute imposing liability on the 'owner' of a dog without regard to knowledge of his vicious nature does not apply to one merely harboring or keeping a dog not owned by him, and, to render him liable, previous knowledge of the dog's vicious nature must appear.' " (*Buffington v. Nicholson* (1947) 78 Cal.App.2d 37, 41; see also *Northon v. Schultz* (1955) 130 Cal.App.2d 488, 489; *Smith v. Royer* (1919) 181 Cal. 165, 168.) "The defenses of assumption of the risk and contributory negligence may still be asserted...." (*Johnson v. McMahan* (1998) 68 Cal.App.4th 173, 176;

see also *Burden v. Globerson* (1967) 252 Cal.App.2d 468, 470.)

1.

Defendant's Initial Burden

Here, the following facts are undisputed: (1) Rust owned and operated EPC; (2) Rust was responsible for the care, custody, and control of all dogs at EPC including the Dog involved in the Incident; (3) Rust was responsible for implementing and enforcing safety protocols at EPC; (4) Cullen was a client of EPC and the owner of the Dog involved in the Incident; and (5) Plaintiff moved onto the premises knowing that EPC was operated therein. (DSSF nos. 1-3, 12; PAMF nos. 1-5, 14, 18.)

However, as discussed above, Plaintiff has submitted evidence showing, *inter alia*, that prior to the Incident, Cullen verbally warned EPC not to introduce the Dog to other people without a proper introduction and stated it would be best if she was present when the Dog was introduced to new people. (PAMF nos. 6, 21-22.) Also, Cullen testified that to her understanding, Plaintiff had never met the Dog before the Incident. (PAMF no. 24.) Moreover, prior to the Incident, Rust texted Cullen that the Dog had been acting up including posturing, stiffness in the body, and not wagging the tail, thus had to be separated from another dog at EPC. (PAMF no. 30.) Nonetheless, Rust did not warn Plaintiff about the Dog nor did Rust review the Dog's medical records outside of vaccinations and if the dog is spade or neutered before boarding despite the records indicating that the Dog had severe fear/mild aggression and territorial/protective aggression. (PAMF nos. 7, 11, 20, 28, 31-32.)

With respect to assumption of the risk, Rust submitted evidence showing that Plaintiff had dogs all her life. (DSSF nos. 11, 22.) Furthermore, Plaintiff entered the gated area where the Dog was contained to disarm the residential alarm. (DSSF no. 32.) Plaintiff pet and kissed the head of the Dog before reaching out to pet him once more. (*Id.*) Rust presents no evidence that Plaintiff's prior interactions with her own dogs and/or dogs in general suggests she knew of the Dog's dangerous propensities.

In light of the evidence presented by Rust, a reasonable jury could find that Rust was a keeper of the Dog involved in the Incident and knew of the Dog's dangerous propensities prior to the Incident. Therefore, Rust has failed to meet her initial burden that no triable issue of material fact exists as to whether Rust is strictly liable under Civil Code Section 3342.

Liability

under Civil Code Section 846

Civil Code Section 846, subdivision (a)

states in pertinent part: “An owner of any estate or any other interest in real property, whether possessory or nonpossessory, owes no duty of care to keep the premises safe for entry or use by others for any recreational purpose or to give any warning of hazardous conditions, uses of, structures, or activities on those premises to persons entering for a recreational purpose, except as provided in this section.” (Civ. Code, § 846, subd. (a).)

“A ‘recreational purpose,’ as used in this section, includes activities such as fishing, hunting, camping, water sports, hiking, spelunking, sport parachuting, riding, including animal riding, snowmobiling, and all other types of vehicular riding, rock collecting, sightseeing, picnicking, nature study, nature contacting, recreational gardening, gleanings, hang gliding, private noncommercial aviation activities, winter sports, and viewing or enjoying historical, archaeological, scenic, natural, or scientific sites.” (Civ. Code, § 846, subd. (b).)

“This section does not limit the liability which otherwise exists for any of the following: [¶](1) Willful or malicious failure to guard or warn against a dangerous condition, use, structure or activity. [¶](2) Injury suffered in any case where permission to enter for the above purpose was granted for a consideration other than the consideration, if any, paid to said landowner by the state, or where consideration has been received from others for the same purpose. [¶](3) Any persons who are expressly invited rather than merely permitted to come upon the premises by the landowner.” (Civ. Code, § 846, subd. (d).)

1.

Defendant’s Initial Burden

Here, Rust presents evidence showing, inter alia, that she offered for Plaintiff to stay at her residence where she operates EPC, in her garage space that was converted into a guest room. (DSSF nos. 8-9.) Although the converted garage space was separated from the main house, Plaintiff was allowed to come into the main house to use the bathroom or kitchen. (Ibid.) Plaintiff accepted Rust’s offer. (DSSF no. 12.)

Likewise, Rust expected Plaintiff would help with EPC in exchange for staying at the Premises rent-free. (DSSF no. 13.)

In light of the evidence presented by Rust, a reasonable jury could find that Plaintiff was not on the Premises at the time of the Incident for recreational purposes but rather upon invite to live on the Premises by Rust. Therefore, Rust has failed to meet her initial burden that no triable issue of material fact exists as to whether the Rust is liable under Civil Code Section 846.

Punitive Damages

The California Civil

Code Section 3294, subdivision (a)

authorizes punitive damages upon a showing of malice, fraud, or oppression.

Malice is defined as either "conduct which is intended by the defendant to cause injury to the plaintiff", or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Despicable conduct is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal. App. 4th 306, 331.) Fraud under California Civil Code Section 3294, subdivision (c)(3) "means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).) The California Civil Code Section 3294, subdivision (2) defines oppression as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (2).)

Punitive damages thus require more

than the mere commission of a tort. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pled in support of punitive damages. (Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-392.) A "conclusory characterization of [a] defendant's conduct as intentional, wilful and fraudulent [is] [a] patently insufficient statement of oppression, fraud, or malice". (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 865.) Facts must be pled to show that a defendant "act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights." (Silberg v. California Life Ins. Co. (1974) 11

Cal.3d 452, 462.) "When nondeliberate injury is charged, allegations that the defendant's conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice." (G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29.) Conduct that is merely negligent will not support a claim for punitive damages. (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1288.)

Here, Plaintiff does not oppose summary adjudication with respect to Rust only, who is the moving party. (Opp. at 17:1-12.) Accordingly, summary adjudication on the issue of punitive damages is GRANTED as to Rust only.

IV.

CONCLUSION

Based on the foregoing, Defendant Kelli Rust d/b/a Elite Pet Care's Motion for Summary Judgment is DENIED.

Alternatively, Defendant Kelli Rust d/b/a Elite Pet Care's Motion for Summary Adjudication is GRANTED as to issue no. 5 regarding punitive damages as to Defendant Kelli Rust d/b/a Elite Pet Care only and DENIED as to issue nos. 1 through 4.

Defendant Kelli Rust d/b/a Elite Pet Care to give notice.

Dated: September
24, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court